

BC635257 BC635257

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-09-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C09%2F28%2F2026

Source SHA-256: b30c1b8470224dae57664823f79adaf88d96e94cc51ee4545ad306324fa8f073

Case Number: BC635257 Hearing Date: September 28, 2026 Dept: 311

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 311

Tentative Ruling

BC635257

EDWARD MOKHTARIAN ET AL VS RICHARD SAPERSTEIN ET AL

September 28, 2026

8:30 AM

NATURE OF PROCEEDINGS: PLAINTIFFS' MOTION FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION FOR ENTRY OF JUDGMENT UNDER CODE OF CIVIL PROCEDURE SECTION 664.6.

RULING:

The Court grants the Motion, as prayed, and will sign and file the Stipulated Judgment received on August 20, 2026.

Plaintiff to give notice.

I. BACKGROUND

On March 28, 2023, Plaintiffs filed the "Notice of Settlement of Entire Case."

On August 26, 2026, Plaintiffs filed the Motion for Entry of Judgment Pursuant to Stipulation for Entry of Judgment Under Code of Civil Procedure Section 664.6.

II. LEGAL STANDARD

Courts are empowered to enter judgments pursuant to written settlements signed by the parties. (*Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1428; Code Civ. Proc., § 664.6.) In deciding motions made under section 664.6, judges “must determine whether the parties entered into a valid and binding settlement.” (*Kohn v. Jaymar-Ruby* (1994) 23 Cal.App.4th 1530, 1533.) A settlement agreement enforced pursuant to Code of Civil Procedure section 664.6 is final and binding as collateral estoppel if it encompassed the subject matter of a subsequent complaint. (*Smith v. Golden Eagle Ins. Co.* (1999) 69 Cal.App.4th 1371, 1374.)

Judgments entered uncontested, or by consent or stipulation, usually are as conclusive judgments rendered after trials. (*Malkoskie v. Option One Mortg. Corp.* (2010) 188 Cal.App.4th 968, 973.) “[A] stipulated judgment is the equivalent of a judgment after a contested trial for the purpose of res judicata and collateral estoppel.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 667.) Stipulations are binding upon parties and judges unless they are unauthorized or in conflict with law. (*Cotton v. Starcare Medical Group, Inc.* (2010) 183 Cal.App.4th 437, 443, disapproved on other grounds by *Quishenberry v. UnitedHealthcare, Inc.* (2023) 14 Cal.5th 1057, 1069; *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279.)

III. ANALYSIS

Plaintiffs move for entry of Judgment based on the Stipulation for Entry of Judgment, attached as Exhibit A to the parties’ Confidential Settlement Agreement and Mutual Release of All Claims, effective April 17, 2023. Their Motion is made on the grounds that Defendant RICHARD SAPERSTEIN failed to make the seventh installment payment of \$100,000, due May 1, 2026, and failed to cure within the required thirty-day cure period, making a stipulated net judgment amount as being \$250,000.

Determinations that parties entered into a binding settlement agreement are upheld if they are supported by substantial evidence. (*In re Marriage of Assemi* (1994) 7 Cal.4th 896, 911.)

Also, a judge in a civil case is not “obligated to seek out theories [a party] might have advanced, or to articulate ... that which ... [a party] has left unspoken.” (*Mesecher v. County of San Diego* (1992) 9 Cal.App.4th 1677, 1686.)

Here, Plaintiffs sufficiently evidences Defendant’s partial nonperformance of stipulated settlement terms, and no Opposition has been filed to raise any issue for Court consideration.

IV. CONCLUSION

Accordingly, the Court grants the Motion, for reasons set forth herein.